GRIP AGENCIES (PVT) LTD
versus
MINISTER OF LOCAL GOVERNMENT PUBLIC WORKS
and
THE SECRETARY OF MINISTRY OF LOCAL GOVERNMENT AND PUBLIC WORKS
and
MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER AND RURAL DEVELOPMENT
and
RUWA GOLF RESORT HOLDINGS LIMITED

HIGH COURT OF ZIMBABWE
**CHITAPI J**
HARARE; 10 February 2026

***Opposed Application***

*T Mpofu*, for the applicant
1st ,2nd and 3rd respondents in default
*T G Zhuwarara*, for 4th Respondent

CHITAPI J: In this matter the applicant Grip Agencies (Pvt) Ltd, a duly incorporated company in terms of the laws of Zimbabwe seeks a declaratory order. The draft order filed by the applicant reads as follows:

> "1. The application for a declaratory order be and is hereby granted with costs on a higher scale.
> 2. It is hereby declared that the Applicant is the sole legitimate holder of rights and interests in the property lot of 1 Stoneleigh of Galway Estate, Goromonzi District, Ruwa measuring 21.1076 hectares.
> 3. It is hereby declared that the Applicant is the sole party with the rights to occupy and develop lot 1 of Stoneleigh of Galway Estate Goromonzi District, Ruwa measuring 21.1076 hectares.
> 4. Consequent on para 2 and 3, the 4th Respondent's conduct of barring the Applicant and all those claiming accesses through it from accessing lot 1 of Setonleigh Galway State, Goromonzi District Ruwa measuring 21.1076 hectares be and is hereby declared to be unlawful. Accordingly, the fourth Respondent is ordered to cease and desist from this unlawful conduct forthwith."

The first respondent is the Minster of Local Government and Public works and the second respondent the secretary to the Ministry. The third respondent is the Minister of lands, Agriculture, Fisheries, Water and Rural Development. The fourth respondent is Ruwa

Golf Resort Holdings Limited, a company duly incorporated in terms of the law of Zimbabwe.

The dispute herein involves rights to the piece of land called lot 1 of Stoneleigh of Galary Estate, Goromonzi. The background facts to the application are that the fourth respondent was the registered owner of the property under Deed of Transfer No 6234/94. The property was compulsory acquired by the State or Government of Zimbabwe. The title deed No DT 6234/94 was duly endorsed to evidence the acquisition. The endorsement was made by the Registrar Deeds and signed on 21 November 2005. Just for the record the endorsement reads as follows:

> "The within mentioned land now vests in The President of Zimbabwe in terms of s 163(6) of the Constitution of Zimbabwe as amended"

The legal effect of the endorsement was as stated by BHUNU JA is the case *TBIC Investments (Pvt) Ltd and Anor* v *Mangenye and Ors* SC13/18, thus,

> "Once the land had been identified and itemized under schedule 7, title to the land automatically vested in the state with the result that it automatically became state property by operation of law. In consequence whereof the previous owner was divested of his title to the land and stripped of all right of ownership to the acquired land thereto."

The fourth respondent was accordingly divested of all rights of ownership to the land in dispute or issue herein. It is the current position that the fourth respondent remains divested of title to the property.

Consequent on the acquisition, the third respondent offered the property to the first respondent for urban development. The first respondent in turn on application by the applicant offered the property to the applicant for it to develop it into a residential development. The applicant made certain payments to the second respondent being and as consideration for a lease agreement between it and the first respondent dated 13 December, 2019. The signing of the lease agreement followed up on the allocation of the property to the applicant on 20 November 2019. When the acquisition of the property was made, the fourth respondent retained ownership and occupation of an adjacent property to the acquired property.

The applicant claims that the fourth respondent has denied the applicant access to the property as a result of which the applicant cannot carry out survey works on the property. The applicant attached copy of a letter dated 19 April 2023 which it wrote to the second respondent seeking assistance to access the property. The applicant wrote as follows:

" ACCESS DENIAL TO LOT 1 OF SETONLEIGH OF GALWAY ESTATE GOROMONZI DISTRICT.

The above matter refers .

We Grip Agencies Private Limited purchased lot 1 of stoneleigh of Galway Estate, Goromonzi in 2019 We have fully paid for the property.

Ruwa sports club, the abutting land owner is unfortunately denying us access to our property. They are refusing us to pass through the main entrance and using the existing roads.

The land surveys have been instructed and are awaiting clearance.

Your help in this matter is greatly appreciated..."

No help was afforded the applicant.

The first and second respondent filed a notice of opposition supported by an affidavit deposed to by the first respondent. In the conclusion to the affidavit the first respondent prays for the dismissal of the application. The narrative which he queries is however inconsistent with the prayer for dismissal. The court engaged this inconsistency. The courts discomfort was allayed on considering that the prayer for dismissal or otherwise is a function of the court and that whatever a party prays for, its grant or refusal is the function of the court.

The first respondents' narrative is short. He confused that the property in issue with the exception of the 18 hole golf course was offered to the applicant. The excepted golf course plan must be observed by the applicant. Regarding the fourth respondent, the first respondent avers that it applied to be offered the property as it had become Stateland but that the application failed. The first respondent averred that the lodging of the failed application was proof that the fourth respondent accepted that the property was now Stateland. He further deposed that the applicant and the fourth respondent needed to co-operate in relation to the implementation of the applicant's development vis-a vis the need to comply with the requirement to preserve the golf course infrastructure and plans relating to it.

The fourth respondent filed an opposing affidavit in which it raised points *in limine*. the first point was that the applicant's claim had prescribed since the applicant purported to have paid off the balance of the purchase or lease amount in 2020 and should have filed this application by 2023 being the year by which prescription would be triggered in terms of s 15 (d) of the Prescription Act. It also averred that the applicant did not provide evidence of its being prohibited from exercising its rights. The second objection was that there was non-

compliance with the Public Procurement and Disposal of Assets Act [*Chapter 22:23*] by the applicant and first respondent in the sale or lease of the property. The third objection was that there was an ongoing Zimbabwe Anti-Corruption (ZACC) investigation relating to documents which the applicant relied upon for its claim. The documents were not related to. It was averred that the applicant was intent on frustrating the investigations through the filing of this application. For this reason, the fourth respondent averred that the applicant should have cited ZACC and that its failure to do so rendered the application dismissible. When the court asked counsel for the fourth respondent why the fourth respondent did not itself join ZACC counsel responded that it is the applicant who should have done so because it came to court. However, the party who relied for its defence on ZACC involvement was the fourth respondent and, in that regard, needed ZACC. Such party was expected if advised to join ZACC.

On the merits, the fourth respondent gave a lengthy narrative of the history of the matter. It set out the paper trial of the acquisition of the property by the owners from whom the property was compulsory acquired. It averred that it owned the subdivision of Ruwa Sports Club Position of Galway Estate measuring 102.3989 held under Deed of Transfer No 68/47 and that this property is contiguous to the property in issue herein. The fourth respondent continued in its lengthy narrative to set out the development of the Grolf course and setling of further development plans which it made.

The fourth respondent admitted that the property in issue was compulsorily acquired by the Government. It purported to have engaged the Provincial Land Committee to have the acquisition revoked. It averred that it has remained in occupation of the property since its acquisition. The fourth respondent further averred that as engagements were ongoing it continued to service the property and, maintain roads a development it had commenced before acquisition and on the strength of a consolidation of the two properties which it had been granted. The fourth respondent then gave another lengthy narrative concerning its engagements with the first, second and third respondents offering to develop the disputed property. It averred that as at October 2019 it had completed survey of the property as per original plans before acquisition. It claimed to have carried out further developments.

The fourth respondent's position is captured in para 30 of the opposition which reads:

> "30 .It therefore came as a surprise that the applicant applied and was offered a lease of the land which the fourth respondent had developed but had only lost through acquisition which acquisition was the subject of engagement among the respondents. The circumstances under

> which the applicant ended up with a lease agreement in respect of the land are under investigation by the Zimbabwe Anti- Corruption Commission. This is being investigated under case No RRB 003583. The investigation commenced after a complaint by Fredrik Chiriga, former chairman of the fourth respondent. See Annexure K. The complaint was lodged after it was discovered that the first and second respondent's officials received and approved the Applicant's application under circumstances. These investigations are ongoing and I have been advised by the Zimbabwe Anti- Corruption Commission that they will soon be making arrests"

It is apposite to quote the above deposition because it clearly tells why the fourth respondent is sore in its feelings about the matter. It simply wants to be the one to be allowed to develop the property in terms of plans approved before acquisition. The first respondent has however clearly stated that the acquisition of the property stands. The lease or sale of the property to the applicant stands. The applicant is however required to comply with golf course plans as already stated herein.

The rest of the fourth respondent's affidavit attacks the process of the legality and/ or property of lease or sale of the property to the applicant by the first respondent's and /or officials. It averred after setting out the steps which it has taken that the second respondents department of physical planning is in support of its application. It also averred that this application is not *bona fide* but a ploy to stifle investigations on the allocation of the property to the applicant which ZACC is carrying out. It averred that the application is a joint ploy by the applicant and unnamed officials of the first and second respondents to thwart investigations.

The fourth respondent averred that the alleged denial of access by the applicant was a bald allegation not supported by facts. What the fourth respondent does not say is that access to the property is open to the applicant. It averred that the letter to the second respondent requesting for assistance with access to the property was contrived by the applicant to justify making this application. Pointedly para 46 of the opposing affidavit again sums up the attitude of the fourth respondent. It states:

> "46 This letter only serves to confirm that this land could not have been awarded to any person other than the fourth respondent because it is annexed to fourth respondents land. There is no means of access except via the fourth respondent's land"

The above deposition is pointed because it shows that the fourth respondent takes the position that it is the one which should have been allocated the land because the land is already consolidated with its own. Secondly the fourth respondent accepts that access to the property must be done through its own position of the land. The need for the applicant to

seek access to its allocated property where the fourth respondent refuses to grant the access is therefore a necessity. The fourth respondent albeit it is not party to the sale lease of the property to the applicant averred that the applicant breached the agreement through forgery of unlisted documents to show that it complied with terms. Again, the details of the terms sought to be sanitized by alleged forged documents and the forged documents themselves were not listed or produced in evidence. The fourth respondents also averred that the applicants lease agreement had expired. On this point it is noted that the issue of whether the lease expired is a matter for the parties to the lease agreement unless the expiry would result in some right accruing to the fourth respondent which is not its pleaded case. On the other hand, if the lease is forged as the fourth respondents argument goes, then the lease is a nullity. A nullity is not in existence and consequently cannot be breached nor does it expire. The fourth respondent should not approbate and reprobate.

In the answering affidavit, the applicant took the point that the notice of opposition was invalid because of the miscitation of the fourth respondent. The objection fell on the narrow issue that the fourth respondent described itself as a Private Limited Company instead of as a Limited Company. This objection was not persisted in Case No HC 2280/25 which was an application to correct the miscitation was withdrawn at the commencement of hearing of this application. For the record the fourth respondent as appears upon a consideration of the averred facts as per the applicants citation is, Ruwa Golf Resort Holdings Limited.

On prescription the applicant averred that the challenge to its rights was only manifested by the fourth respondent in 2023 when the fourth respondent faced resistance of denial of access to the property when it wanted to survey it for development. The applicant referred to its letter to the second respondent dated 17 April 2023 seeking help to access the property as evidence of when the dispute between parties manifested itself. Prescription had to be calculated from that time because the issue of competing claims as between the applicant and the respondent was born around that period.

In relation to the alleged breach of the Public Procurement and Disposal of Public Assets Act, the applicant averred that the provisions of that Act did not apply to the facts and circumstances of this matter wherein compulsory acquired land was allocated to an entity by lease agreement albeit with a provision of option to purchase. The allocation of land was according to the applicant not subject to the Act. On this point the applicant is correct and one simply has to refer to the Act itself which states in section 3 as follows:

**"3 Application of Act**

(1) Subject to this section, this Act shall apply to all stages of the process of –

(a) The procurement of goods, construction works and services by procuring entities, and

(b) The disposal of public assets by procuring entities

The allocation of land under the land reform laws of this country has not to the knowledge of the court been subject to the Act nor to bidding processes. Implicit in the allocations is that the land allocated can be reacquired and reallocated to manage land tenure. In *casu,* the property after compulsory acquisition was leased to the applicant. The option to purchase was incidental to the lease and did not in the view of the court render the allocation subject to the Act. Certainly, the land allocations cannot be subject to a bidding process where the one with means wins through putting up the highest bid. If this were to be the position; there would be no room for Government to equitably manage land for the benefit of all citizens which is the ideal or default position for Government to adopt. In any event, even if the position adopted by the court is wrong the Act provides for challenges to disposals and how they should be raised. This court is not the correct forum for such challenges at first instance.

On prescription, there was no merit to the prescription objection. It was poorly pleaded and not established. Counsel largely gave evidence from the bar on the issue. The opposing affidavit scantly dealt with the issue. In para (s) 3-7 of the opposing affidavit the fourth respondent averred that the declaration of ownership ought to have been made within three years of the date that the applicant paid the balance of the purchase price. However, the argument is bad at law. The applicant came to court because of a challenge to accessing allocated property. It then because necessary for the applicant to have its rights to the property declared by the court and to claim ancillary relief. A party to a contract does not come to court to seek a declaration of payment of the full price of a contract. A dispute must arise which leads the affected party to find it necessary to seek such a declaration. The points *in limine* were therefore dismissed.

Counsel for the applicant submitted that the fourth respondent did not have *locus standi* to hold on to the property and refused the applicant access to the same. The admitted acquisition of the property compulsorily by the state divested the fourth respondent of ownership rights and control over the property not withstanding whatever improvements,

plans or interests existed prior to acquisition. The law of acquisition provides for a separate process of claiming damages for any *legislate prejudice* which the prior owner suffers by reason of the acquisition. The fourth respondent may be in engagement with the first, second and third respondents on its lost title rights and interest in the property. ZACC may be investigating whatever case was reported to it. The fourth respondent may feel hard done by the acquisition as it had already serviced the property and had grandiose plans for its development. The fourth respondent indeed may feel that it is the one entitled to the property and that its engagement may be successful and it is allocated the property. It may feel that the allocation of the property was fraught with irregularities or even fraud as it alleged. Unfortunately for the fourth respondent, the acquisition and reallocation of the property to the applicant stands. It is extant unless set aside by the court or this has been a reallocation made by the first respondent. The court gives effect to the existing standing legal order relating to title, interest and rights on the property.

The fourth respondent's protestations were not expressed or pleaded in a counter application. In the case of *Indium Investments (Pvt) Ltd* v *Kingshaven (Pvt) Ltd and Anor* 2015 (2) ZLR 40 (s) at 44F, the court stated

> "A plea is a defence and as such can be likened to a shield. No relief can attach to a party through a plea"
>
> See who *Lonrho Logistics (Pvt) Ltd* v *Ram Petroleum (Pvt) Ltd* SC 50/22.

The same position applies in application proceedings where the notice of opposition and its accompaniments is likened to a plea or answer to the claim. The fourth respondent has argued at length in the opposing affidavit that the applicant's title is bad at law or otherwise without further ado. However, the bad title at least according to the fourth respondent is extant. The fourth respondent is an impositor, a resistor of the legal order and gets no sympathy from the court. The fourth respondent upon the acquisition of the property ceased to have any right to cling to it. Negotiations to have the property allocated to it remain negotiations. They do not confer a right on the fourth respondent to hold the property.

The acquisition of the property resulted in the acquisition authority becoming the lawful owner of the property with unfettered rights to deal with the property as it washed including the conclusion of a lease and/ or sale agreement with the applicant. The fourth respondent was not party to lease agreement the first respondent and the applicant. It purported to speak to breaches of that agreement. At law it cannot do so. It is a stranger

forcing itself into a relationship whose consummation it was not party to. It is trite law in contract that enforcement of rights and obligations arising from a contract is the domain of the contracting parties to the exclusion of third parties. The fourth respondent having been divested of ownership and rights and title to the property has no business prying into issue of compliance or breaches of the contract between the applicant and the first respondent. The law demands that it should let go of the land. In failing, neglecting or refusing to do so. Its hands are dirty.

In terms of section 14 of the High Court Act [ *Chapter 7:06*] this court has a discretion to grant a declaratur at the instance of an interested party and to enquire into any existing, future or contingent right or obligation notwithstanding that the person seeking the declaratur does not seek any relief consequential upon such determination. The applicant is an interested party and satisfies the requirements for the grant of a declaratur. It does not matter that the fourth respondent considers that the declaration does not effect it. It is not necessary that rights are infringed before a person can approach the court for a declaration envisaged in section 14.

The fourth respondent has itself stated that access to the property can only be made through its property. It denied that it denied the applicant access. It did not however offer the access to show its *bona fides.* Its attitude is that the applicant should not be on the property because *inter-alia* the fourth respondent is heavily invested in property and hopes to be allocated the same. In this regard, the court will amend the order sought in to order access.

The applicants counsel moved for an order in terms of the draft order. The court will grant the order as amended. Costs were sought in the draft order on the higher scale.

The fourth respondent is clearly obstinate and is in court with dirty hands so to speak, it clearly host rights to the property and failed in its appeal for allocation of the property to it going by what the first respondent stated in this affidavit. It had no rights to the property upon its acquisition and does not have them. Punitive costs are justified.

Resultantly, the application is determined by the following order.

IT IS ORDERED THAT.

1. It is hereby declared that the applicant is the sole holder of rights and interests in the property called Lot 1 of Stoneleigh of Galway Estate, Goromonzi District Ruwa measuring 21.1076 hectares

2. It is hereby declared that the applicant has exclusive rights of occupation, enjoyment and use of the property in para 1 above.
3. The fourth respondent is ordered to grant the applicant, its agents and privies access through its property portion of Galway Estate measuring 102.3989 hectares held under deed of transfer No 68/47 within 48 hours of service upon it of this order failing which the Sheriff is authorised and directed to enforce access to the property to the applicant, its agents and privies.
4. The fourth respondent shall pay costs on the scale of legal practitioner and client scale.

**CHITAPI J:.....**

*Rubaya & Chatambudza*, Applicant's Legal Practitioners
*Cpgham & Welsh Guets*, 4th Respondent's Legal Practitioners
*Civil Division*, 1st ,2nd & 3rd Respondent's Legal Practitioners